a true copy under the hand of the Treasurer for the time being of Queen Anne's Bounty.

15.—(1) This Measure shall come into operation on the appointed day. Commencement

(2) The appointed day shall be such day not later than three months after the passing of this Measure as Queen Anne's Bounty may determine.*

(3) The determination by Queen Anne's Bounty of the appointed day shall be notified by advertisement in the "London Gazette."

16. In this Measure the expressions "tithe rent-charge" and "benefice" have the same meanings as in the Tithe Act, 1925. Interpretation.

17. This Measure may be cited as the Tithe (Administration of Trusts) Measure, 1928 Short title.

SCHEDULE.

Section 3.

The Clergy Residences Repair Act, 1776.
The Clergy Residences Repair Act, 1780.
The Clergy Residence Act, 1826.
The Parsonages Act, 1838.
The Parsonages Act, 1865.
The Loans (Incumbents of Benefices) Amendment Act, 1918.

No. 3.

A MEASURE passed by the National Assembly of the Church of England

To amend the Clergy Pensions Measure, 1926.

[3rd August 1928.]

1. Subsection (1) of section one of the Clergy Pensions Measure, 1926 (in this Measure referred to as the "principal Measure"), shall have effect and shall be deemed always to have had effect as if the following paragraph were substituted for paragraph (*h*) (that is to say):— Extension of scope of Clergy Pensions Measure, 1926.

"(*h*) Such other clerks in Holy Orders licensed under seal by diocesan bishops and engaged in

---

* The day thus determined was September 30, 1928: *see* "London Gazette," August 14, 1928, p. 5445.

rendering continuous and whole-time ecclesiastical service as are not upon their own application excluded by the pensions authority from the provisions of this Measure on the ground that they are entitled to the benefits of some pension or superannuation scheme, approved by the pensions authority, other than that established by this Measure."

Aggregation of preferments and stipends.

2. In any case where an income is simultaneously derived from more than one of the sources mentioned in subsection (1) of section one of the principal Measure, but the income derived from each of such sources or from any one or more of them is less than one hundred pounds, the whole of such income shall be aggregated for the purpose of the said subsection, and references in the principal Measure and in this Measure to preferments, offices or functions by virtue whereof the principal Measure applies to any person shall be deemed to include preferments, offices or functions by virtue whereof as affected by the provisions of this section the principal Measure applies to any person.

Qualifying pensionable service.

3. Section three of the principal Measure shall have effect, and shall be deemed always to have had effect, as if for subsection (1) thereof the following subsection were substituted:—

"(1) For the purposes of this Measure the expression 'a qualifying period of pensionable service' means a period of, or a succession of periods (either with or without intervals), amounting in the whole to not less than, fifteen years, and consisting of the aggregate of—

(i) any period before the appointed day during which a compulsory contributor has within the area to which this Measure applies, served as a clerk in Holy Orders in such a capacity as to bring him within any of the classes of clergy mentioned in subsection (1) of section one of this Measure;

(ii) the period or periods after the day immediately preceding the appointed day in respect of which such compulsory contributor has paid or become liable to pay contributions or instalments of contributions under this Measure; and

(iii) any other period during which such compulsory contributor has, either in the area to which this Measure applies or outside, served as a clerk in Holy Orders, and in respect of which he has under an agreement made with the pensions authority paid to the pensions authority such a sum as the pensions authority may require not exceeding the actuarial equivalent of the cost of the addition of such period to his qualifying period of pensionable service:

Provided that the pensions authority shall have power to release a compulsory contributor from his liability to pay contributions in respect of the year commencing upon the appointed day upon the terms that such year shall not be taken into account in calculating the qualifying period of pensionable service of such compulsory contributor."

Conditions for the receipt of pensions.

4. The words "provided that" shall be substituted for the words "For the purposes of this Measure" in section four of the principal Measure, and that section as so amended shall have effect as a proviso to the first of the conditions laid down by section five of the principal Measure.

Provinces to be equally represented upon the pensions authority.

5.—(1) All elections to membership of the pensions authority made by the Church Assembly after the passing of this Measure shall be made upon the footing that one-half of the members so elected shall be persons ordinarily resident in the Province of Canterbury, and one-half of the members so elected shall be persons ordinarily resident in the Province of York:

Provided that—

(i) this section shall not apply to members of the pensions authority elected from among the beneficiaries of the Clergy Pensions Institution; and

(ii) where the whole number of the members elected by the Church Assembly to whom this section applies is for the time being not an even number, such of the said members as are ordinarily resident in either province may exceed such of the said members as are ordinarily resident in the other province by one.

(2) The expressions " nominate " and " nomination " shall in the principal Measure and in this Measure be construed as including " elect " and " election " and *vice versa*.

(3) In section eight of the principal Measure the words " (and so that of such sixteen members not more " than nine shall be persons ordinarily resident in the " Province of Canterbury) " are repealed.

Vacation of office by members of the pensions authority.

6.—(1) At the expiration of a period of three years from the appointed day one-third of each class of the original members of the pensions authority selected by lot shall vacate office.

(2) At the expiration of a period of five years from the appointed day one-half of the remaining original members of the pensions authority in each class selected by lot shall vacate office.

(3) At the expiration of a period of seven years from the appointed day the remaining original members of the pensions authority shall vacate office.

(4) For the purposes of this section—

(i) the members of the pensions authority elected by the Church Assembly otherwise than from among the beneficiaries of the Clergy Pensions Institution, the members elected by the Church Assembly from among the said beneficiaries, and the members nominated by the Ecclesiastical Commissioners shall respectively be classes of members;

(ii) a class of members shall be deemed to be reduced by one or two as may be required if the number of the members thereof is not an even multiple of three or two;

(iii) original members include members appointed to fill vacancies not being members elected for a term of years under this section or the immediate or other successors of members appointed for a term of years under this section; and

(iv) for the purposes of this section the chairman is not included among the members of the pensions authority.

(5) Members of the pensions authority elected on the occasion of the vacancies provided for by this section and their immediate and other successors shall, subject to the

provisions of this section, hold office for six years, except that members who are such successors as aforesaid and who are elected to fill casual vacancies or upon a reduction in number in the beneficiaries of the Clergy Pensions Institution shall respectively hold office only for the remainder of the respective terms for which the members replaced would respectively have held office.

(6) Members of the pensions authority vacating office shall be eligible for re-election.

(7) The term of office of the chairman of the pensions authority shall be determined by the Church Assembly.

(8) The chairman or any member of the pensions authority may for good cause be removed from office by the body by whom he was elected.

(9) Section ten of the principal Measure is hereby repealed.

7. The pensions authority shall, in addition to the powers mentioned in section twelve of the principal Measure, have power to appoint any persons or any body of persons, whether members of the pensions authority or not, to act upon such terms and conditions as may be laid down by the pensions authority as local committees for any areas, whether dioceses or not, and subject to the provisions of the principal Measure to delegate to such committees any powers and duties of the pensions authority. Local committees.

8.—(1) The pensions authority shall have power to create a separate fund consisting of any testamentary and other gifts made to the pensions authority, and subject to any conditions imposed by the testators or other donors may, at the discretion of the pensions authority, apply such fund or any part thereof for any purpose beneficial to the persons to whom the principal Measure applies, including non-contributing pensioners and, notwithstanding any provisions of subsection (4) of section seven of the principal Measure to the contrary, voluntary contributors, or to the widows and orphans of such persons. Special fund for donations and bequests.

(2) Paragraph (*e*) of subsection (1) of section sixteen of the principal Measure is hereby repealed, and subsection (1) of section twenty-four of the principal Measure shall be modified accordingly.

9.—(1) Subject to the provisions of this section every compulsory contributor shall be liable to pay a contribution in respect of each calendar year during any part of Contributions.

which he is a compulsory contributor, and in Rule 1 of the Contribution Rules the word "yearly" shall be substituted for the word "half-yearly" wherever it occurs and the rates of contribution set out in or to be ascertained under such rule shall be read as if multiplied by two.

(2) An annual contribution shall be paid in two instalments payable on the thirtieth day of June and the thirty-first day of December in each year in respect of the half-years ending on those days respectively, but a compulsory contributor shall not be bound to pay any half-yearly instalment unless on the first day of the half-year in respect of which the instalment is payable the principal Measure applied to him as a compulsory contributor, or unless he has undertaken in writing to pay the instalment.

(3) Every contribution payable by a compulsory contributor under the principal Measure before this Measure comes into force shall be deemed to have been payable in respect of the half-year beginning on the day on which the contribution was due.

(4) Rule 11 of the Contribution Rules is hereby repealed.

(5) Subject to the provisions of the principal Measure relating to byelaws the pensions authority shall have power to make byelaws regulating the collection of contributions, and such byelaws may be either additional or supplementary to the contribution rules as amended by this Measure, but no byelaw made by the pensions authority under this subsection shall alter any rate of contribution.

Assessable clerical income

10.—(1) For the purposes of Rule 1 of the Contribution Rules as amended by this Measure assessable clerical income means the net income as ascertained under the provisions of this Measure which is earned during the year preceding the year of assessment by a compulsory contributor as the holder of any preferment or in respect of the stipend, salary or emolument of an office or function by virtue whereof the principal Measure applies to him, and includes the annual value of his parsonage house or house of residence (if any): Provided that where an assessable clerical income is derived from more than one of the above-mentioned sources, either simultaneously or consecutively, the whole of that income shall be aggregated.

(2) The value of a parsonage house or house of residence shall be estimated according to the annual value thereof for the purposes of the enactments relating to income tax, but subject to the deduction of the sum (if any) by which such annual value exceeds one-eighth of the net income earned during the said preceding year by the compulsory contributor concerned as the holder of the benefice, deanery, prebend or canonry to which such parsonage house or house of residence belongs.

(3) A pension under the Incumbents Resignation Acts, 1871 and 1887, or the Deans and Canons Resignation Act, 1872, and any charge created under the transitional provisions of the principal Measure shall be allowed as a deduction in estimating the assessable clerical income. 35 & 36 Vict. c. 8.

(4) A compulsory contributor who has held no preferment or office by virtue whereof the principal Measure applies to him during the year preceding the year of assessment shall, and a compulsory contributor who has held such preferment or office for part of that year only may, if the pensions authority think fit, be assessed on his estimated net income for the year of assessment.

(5) The pensions authority shall assess compulsory contributors to contributions in accordance with the Contribution Rules as amended by this Measure, and for the purposes of any assessment may determine whether and in what manner any sums payable under the Ecclesiastical Dilapidations Measure, 1923, are to be apportioned between a parsonage house and other buildings of a benefice, and any other matter requiring to be determined and not expressly provided for by the principal Measure or by this Measure.

(6) Every assessment to contributions shall as soon as is reasonably practicable be communicated by the pensions authority to the compulsory contributor concerned, who shall be accorded a period of twenty-one days within which to give notice to the pensions authority of any objection to the assessment and of the grounds thereof.

(7) The pensions authority shall have power from time to time to revise or adjust any assessment to contributions in any case where the circumstances so require, and any revised or adjusted assessment shall supersede the original assessment or any previously revised or adjusted assessment.

(8) Notwithstanding any other provision of this Measure the pensions authority shall have power in any exceptional case where, in the opinion of the pensions authority, circumstances so require, to determine the amount of the assessable clerical income of a compulsory contributor, or of any item thereof, upon such basis as the pensions authority may think proper.

(9) Rules 2 and 3 of the Contribution Rules are hereby repealed.

Returns of clerical income.

11.—(1) The pensions authority may send to every bishop (not being a diocesan bishop), priest or deacon in the area to which the principal Measure applies a requirement to furnish particulars of his clerical income in the form set out in the Schedule to this Measure, or in such other form as may be prescribed, and it shall be the duty of every bishop, priest or deacon to whom such a requirement or other request for information is sent to complete the form and return it, or furnish the information required to the pensions authority within such period not being less than twenty-one days, as the pensions authority may determine.

(2) If any bishop, priest or deacon to whom such a requirement or request for information is sent fails to comply therewith, the pensions authority may assess him to contributions of such amounts fixed on the basis of such information as the pensions authority shall in its absolute discretion think proper, and the making of such an assessment shall be primâ facie evidence that such bishop, priest or deacon is a compulsory contributor, and, as such, liable to pay the contribution assessed.

(3) The pensions authority shall be entitled to disclose information obtained under the provisions of this section to any person, authority or body charged with administrative duties connected with the Church of England.

(4) Rule 4 of the Contribution Rules is hereby repealed.

Clergy Pensions Institution.

12. Any monies forming part of the funds of the Clergy Pensions Institution may at the discretion of the Institution be advanced by way of loan to any beneficiary of the Institution upon the security of any sum which under the Rules of the several funds of the Institution is standing to his credit.

Transition from the Incumbents Resignation Acts, 1871 and 1887.

13. Section twenty-seven of the principal Measure shall be amended by substituting the following paragraph for paragraph (i) of subsection (1) of that section :—

"(i) In any case where a compulsory contributor who was admitted to deacon's orders before the appointed day is about to retire and is the holder of a benefice, the bishop of the diocese in which such benefice is situate shall before accepting the resignation of such compulsory contributor notify the pensions authority that he proposes to accept the same, and if the pensions authority shall be of opinion—

(*a*) that such compulsory contributor will upon his retirement be entitled to enter upon the receipt of a pension under this Measure, and

(*b*) that the annual value of the benefice which he is resigning exceeds three hundred and fifty pounds

the pensions authority shall request the bishop to cause a commission to issue under his hand and seal, and the bishop shall cause such commission to issue accordingly."

Reciprocal arrangements.

14. Any organised body of clergy ministering outside England under the jurisdiction of any bishop consecrated as a bishop of the Church of England or of any bishop in communion with the Church of England in connection with which body a pension scheme has been established, shall, for the purposes of section thirty of the principal Measure, be deemed to be a church to which that section applies.

Return of contributions.

15.—(1) Where a compulsory contributor dies before entering upon the receipt of a pension under the principal Measure the pensions authority shall repay to his representatives out of the Clergy Pensions Fund such sum as is laid down by this section.

(2) Where a compulsory contributor ceases to be a compulsory contributor in such circumstances that he is not immediately entitled to enter upon the receipt of a pension under the principal Measure, the pensions authority may forthwith, and shall upon his attaining the age of seventy years or retiring before attaining that

age by reason of permanent disability for the performance of his work or duties repay to him out of the Clergy Pensions Fund, upon an application made by him in such form as the pensions authority shall require, such sum as is laid down by this section.

(3) A compulsory contributor receiving repayment under this section shall cease to have any further rights under the principal Measure or any amendment thereof either to receive a pension on retirement, or, if he again becomes a compulsory contributor, to have any period before the repayment taken into account in calculating his qualifying period of pensionable service or in any other respect.

(4) Provided that any bishop, priest or deacon who has received a repayment under this section and again becomes a compulsory contributor—

(i) shall have the right upon repaying to the pensions authority the amount repaid to him, together with compound interest thereon at the rate of two and a half per cent. per annum with annual rests calculated from the date of repayment to him, to be reinstated in the possession of all rights to which he would have been entitled if the repayment of contributions had never been made; or

(ii) if he does not avail himself of the said right, may, at the discretion of the pensions authority, be wholly or partially reinstated in the possession of such rights upon such terms and conditions as the pensions authority may think fit.

(5) The sum to be repaid under this section shall be—

(i) such a sum as shall be equal to the aggregate of all contributions paid by the compulsory contributor under the principal Measure, together with compound interest at the rate of two and a half per cent. per annum with annual rests upon each contribution repaid calculated from the date of the payment thereof; or

(ii) in the case of a compulsory contributor admitted to deacon's orders after the day immediately preceding the appointed day who dies before he has entered upon the receipt of a pension under the principal Measure either such a sum as aforesaid or the sum of two hundred pounds, whichever shall be the greater.

(6) The benefits conferred by this section shall be incapable of being assigned by any instrument or act inter vivos, or of being charged or anticipated, and the same shall not pass to any trustee in bankruptcy.

(7) Any arrears of contributions due from a compulsory contributor entitled to any repayment under this section shall be deducted by the pensions authority from the monies repaid together with interest at the rate of five per cent. per annum calculated from the respective dates upon which the contributions in arrear were due.

(8) For the purposes of this section contributions paid under an agreement made under the provisions of subsection (4) of section seven of the principal Measure, or of section one of the Clergy Pensions (Amendment) Measure, 1927, shall be deemed to be contributions paid by a compulsory contributor, and all rights conferred by any such agreement shall be deemed to be rights arising under the principal Measure or an amendment thereof.

(9) Section thirty-one of the principal Measure is hereby repealed.

Isle of Man and non-contributing pensioners.

16. The provisions of the principal Measure relating to non-contributing pensioners shall apply to the Isle of Man, and the provisions to the contrary of subsection (2) of section thirty-eight of the principal Measure (being all words before the words "the transitional provisions") are hereby repealed.

Commencement.

17. This Measure (except sections one and three, which shall have effect as from the appointed day) shall come into force on the first day of January in the year following upon that in which it is passed.

Short title and construction.

18.—(1) This Measure may be cited as the Clergy Pensions (Amendment) Measure, 1928, and shall be construed as one with the principal Measure, and the principal Measure, the Clergy Pensions (Amendment) Measure, 1927, and this Measure may be cited together as the Clergy Pensions Measures, 1926 to 1928.

(2) In this Measure the expression "appointed day" means the first day of January, 1927.

Section 11.

THE

RETURN OF BENEFICE INCOME FOR

*Name of Incumbent (in full)*__________________
Date of Birth __________________________
*Postal Address*__________________________

FOR ASSESSMENT UNDER THE CLERGY

	£	*s.*	*d.*
(A)—INCOME OF BENEFICE FOR THE YEAR 192 :—			
1. Fees - - - - - - - - - - - - -			
2. Easter Offerings - - - - - - - -			
3. Pew Rents - - - - - - - - - - -			
4. Dividends on Investments (before deduction of tax) :—			
(*a*) Ecclesiastical Commissioners - - - - - -			
(*b*) Trustees - - - - - - - - - - -			
5. Augmentation Grants and other Annual Payments :—			
(*a*) Ecclesiastical Commissioners - - - - - -			
(*b*) Other sources - - - - - - - - -			
6. Queen Anne's Bounty :—			
(*a*) Interest and Dividends - - - - - - -			
(*b*) Net amount of Tithe - - - - - - -			
7. Amount of Tithe collected direct (*less* statutory Charges due to Queen Anne's Bounty) - - - - -			
8. Tithe Redemption Annuities—(Interest portion due from Queen Anne's Bounty) - - - - - - - -			
9. Income from Charitable Sources—(Paid to me in virtue of my office) - - - - - - - - -			
10. Letting of Lands and Houses (excluding Parsonage House), Ground Rents, Sporting and other rights - -			
11. Voluntary Payments made in virtue of my Office :—			
(*a*) From Parish - - - - - - - - - -			
(*b*) From Patron - - - - - - - - - -			
(*c*) From Queen Victoria Clergy Fund - - - - -			
(*d*) From Diocesan Funds - - - - - - -			
(*e*) From other sources - - - - - - - -			
12. Manorial Rights, including Leases of Minerals - -			
13. Income from other Ecclesiastical Sources (state nature) -			
Total Income - - - £			
Less Total Outgoings - £			
Total Net Income £			
(B)—GROSS SCHEDULE "A" INCOME TAX :—			
Value of Parsonage House or House of Residence - - - - £ : :			
Less Allowance for Study - £ : :			
Value for Pension Contribution - £ : :			
Assessable Income - - - - £			

Curates officiating

Name.	Postal Address.	Date of Birth.

Date

Note.—(i) If the Schedule A value exceeds 1/8th of the total net income as shown
of the Parsonage House.
(ii) Voluntary payments from Parish should include payments by Parochial
and Pensions Contribution.

SCHEDULE.

THE YEAR ENDING 31ST DECEMBER, 192 .

*Name of Benefice[s]*____________
*Rural Deanery*____________
*Diocese*____________ *Date of Ordination*________

PENSIONS MEASURES, 1926–1928.

OUTGOINGS :—	£	*s.*	*d.*
1. PERMANENT OUTGOINGS—			
(*a*) Cost of Collection of Pew Rents and Fees - - -			
(*b*) Ecclesiastical Dues - - - - - - -			
(*c*) Other Charges - - - - - - - - - -			
(*d*) Repairs :—			
(i) Annual Payment under the Ecclesiastical Dilapidations Measure, 1923 (including Parsonage House) - - - - - - -			
(ii) If no dilapidations survey yet made, insert Schedule A Income Tax allowances for Repairs on Glebe and Parsonage House -			
2. OUTGOINGS IN RESPECT OF GLEBE LANDS AND BUILDINGS (excluding Parsonage House), other than Repairs :—			
(*a*) Land Tax - - - - - - - -			
(*b*) Tithe Rent-Charge - - - - - -			
(*c*) Quit-Rent, other Rent and Rates - -			
(*d*) Collection Charges and Insurance - -			
3. OTHER CHARGES :—			
(*a*) Special Expenses of Office (as allowed by Income Tax authorities) - - - - - - - - - -			
(*b*) Mortgage Charges—			
(i) Capital Repayment - - - - - -			
(ii) Interest Payment - - - - - - -			
(*c*) Retired Incumbent's Pension charged on Benefice -			
(*d*) Curate's Stipend—			
(i) Compulsory under Act 48 & 49 Vict., cap. 54, Sect. 13, 16 & 17 Geo. V., No. 8, Sec. 5 -			
(ii) Voluntary - - - - - - - - -			
(*e*) Payments to Lay Workers licensed by Bishop - -			
(*f*) Other Outgoings (state nature) - - - - -			
TOTAL OUTGOINGS £			

UNDER ME.

Date of Ordination.	Emoluments of office received during the year. (In the event of changes please aggregate.)

Signature of Incumbent

above, then 1/8th only of the net income will be added instead of the Schedule A value

Church Council or Churchwardens towards Dilapidations, Rates on Parsonage House,